

SENATE BILL NO. 224

INTRODUCED BY S. MORIGEAU, D. BAUM, E. BOLDMAN, M. CAFERRO, B. CARTER, B. CLOSE, T. CROWE, M. CUNNINGHAM, W. CURDY, S. DEMAROIS, M. DUNWELL, B. EDWARDS, J. ELLIS, D. FERN, C. FITZPATRICK, P. FLOWERS, M. FOX, T. FRANCE, S. FYANT, A. GRIFFITH, D. HARVEY, D. HAWK, D. HAYMAN, S. HOWELL, J. ISALY, J. KARLEN, E. KERR-CARPENTER, K. KORTUM, M. LEE, J. LYNCH, J. MORIGEAU, L. MUSZKIEWICZ, S. NOVAK, A. OLSEN, D. POWERS, J. REAVIS, M. ROMANO, T. RUNNING WOLF, J. SECKINGER, F. SMITH, L. SMITH, J. SOOKTIS, S. WEBBER, J. WINDY BOY, E. STAFMAN, P. STRAND, K. SULLIVAN, M. THANE, P. TUSS

A BILL FOR AN ACT ENTITLED: "AN ACT ESTABLISHING INDIGENOUS PEOPLES' DAY AS A LEGAL HOLIDAY IN MONTANA; AND AMENDING SECTION 1-1-216, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 1-1-216, MCA, is amended to read:

"1-1-216. Legal holidays and business days. (1) The following are legal holidays in the state of Montana:

- (a) Each Sunday;
- (b) New Year's Day, January 1;
- (c) Martin Luther King Jr. Day, the third Monday in January;
- (d) ~~Lincoln's and Washington's Birthdays~~ PRESIDENTS' DAY, the third Monday in February;
- (e) Memorial Day, the last Monday in May;
- (f) Independence Day, July 4;
- (g) Labor Day, the first Monday in September;
- (h) Indigenous Peoples' Day and Columbus Day, the second Monday in October;
- (i) Veterans' Day, November 11;
- (j) Thanksgiving Day, the fourth Thursday in November;
- (k) Christmas Day, December 25;

(l) State general election day.

(2) (a) If any of the holidays in subsection (1)(b) through (1)(l) fall on a Sunday, the Monday following is a holiday.

(b) If any of the holidays in subsection (1)(b) through (1)(l) fall on a Saturday, the Friday preceding is a holiday.

(c) All other days are business days."

NEW SECTION. Section 2. Notification to Montana supreme court. The secretary of state shall send a copy of [this act] to the Montana supreme court. The Montana supreme court is requested to update the definition of "legal holiday" in its rules of civil procedure to reflect the provisions of [section 1].

NEW SECTION. Section 3. Notification to local governments. The secretary of state shall send a copy of [this act] to the Montana league of cities and towns and to the Montana association of counties.

NEW SECTION. Section 4. Notification to tribal governments. The secretary of state shall send a copy of [this act] to each federally recognized tribal government in Montana.

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